

SECOND SCHEDULE.

Section 44.

REPEALS.

Session and Chapter.	Title and Short Title.	Extent of Repeal.
18 Eliz. c. 6 -	An Act for maintenance of the colleges in the universities and of Winchester and Eaton.	The whole Act.
3 & 4 Vict. c. 113.	The Ecclesiastical Commissioners Act, 1840.	Section sixty-nine.
21 & 22 Vict. c. 44.	The Universities and College Estates Act, 1858.	The whole Act.
23 & 24 Vict. c. 59.	The Universities and College Estates Act Extension, 1860.	The whole Act.
43 & 44 Vict. c. 46.	The Universities and College Estates Amendment Act, 1880.	The whole Act.
61 & 62 Vict. c. 55.	The Universities and College Estates Act, 1898.	The whole Act.
12 & 13 Geo. 5. c. 16.	The Law of Property Act, 1922	Such of the provisions of Part II. and the Tenth Schedule as are applied to universities and college estates, so far as they apply thereto.
15 Geo. 5. c. 5.	The Law of Property (Amendment) Act, 1924.	Section eleven and the Eleventh Schedule.

CHAPTER 25.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and Air Force. [29th April 1925.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom

and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and sixty thousand six hundred, including those to be employed at the depôts in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

7 & 8 Geo. 5.
c. 51.

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-six thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid, and the provisions of the Air Force Act are due to expire at the same dates as the provisions of the Army Act :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and twenty-five on the following days :—

- (a) in Great Britain and Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. This Act may be cited as the Army and Air Force (Annual) Act, 1925. Short title.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :— Army Act
and Air
Force Act
to be in
force for
specified
times.

- (a) Within Great Britain and Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and twenty-five, to the thirtieth day of April, one thousand nine hundred and twenty-six, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and twenty-five, to the thirty-first day of July, one thousand nine hundred and twenty-six, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

Prices in
respect of
billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act.

AMENDMENTS OF ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF ARMY ACT APPLICABLE ALSO TO THE AIR FORCE ACT.

Abolition
of death
penalty in
certain
cases.

4. For the purpose of abolishing death as a penalty for certain offences committed not on active service the following amendments shall be made in the Army Act :—

(1) In subsection (1) of section six, paragraphs (e), (f) and (j) shall be omitted;

(2) In subsection (2) of section six, the following paragraphs shall be inserted after paragraph (b):
“or

“(c) Impedes the provost marshal or any assistant provost marshal or any officer or non-commissioned officer or other person legally exercising authority under or on behalf of the provost marshal, or, when called on, refuses to assist in the execution of his duty the provost marshal, assistant provost marshal, or any such officer, non-commissioned officer, or other person; or

“(d) Does violence to any person bringing provisions or supplies to the forces; or commits any offence against the property or person of any inhabitant of or resident in the country in which he is serving; or

“(e) Irregularly detains or appropriates to his own corps, battalion, or detachment any provisions or supplies proceeding to the forces, contrary to any orders issued in that respect”;

(3) In subsection (1) of section eight after the words “court martial” there shall be inserted the words “if he commits such offence on active service,” and after the word “mentioned” there shall be inserted the words “and if he commits

“ such offence not on active service be liable
 “ to suffer penal servitude or such less punish-
 “ ment as is in this Act mentioned ” ;

- (4) In subsection (1) of section nine after the words
 “ court martial ” there shall be inserted the
 words “ if he commits such offence on active
 service,” and after the word “ mentioned ” there
 shall be inserted the words “ and if he commits
 “ such offence not on active service be liable
 “ to suffer penal servitude or such less punish-
 “ ment as is in this Act mentioned.”

5.. The following amendments shall be made in Amendment
of s. 18 of
Army Act.
 section eighteen of the Army Act (which relates to
 disgraceful conduct) :—

- (1) For the word “ soldier ” where that word first
 occurs there shall be substituted the words
 “ person subject to military law ; ”

- (2) The following paragraph shall be substituted for
 paragraph (2) :—

“ (2) Wilfully maims or injures himself or
 any other person subject to military law,
 whether at the instance of that person or
 not, with intent thereby to render himself or
 that person unfit for service, or causes himself
 to be maimed or injured by any person with
 intent thereby to render himself unfit for
 service; or ”

- (3) In paragraph (4) for the words “ comrade or of
 an officer ” there shall be substituted the words
 “ person subject to military law.”

6. The following amendments shall be made in Amend-
ments of
s. 46 of
Army Act.
 section forty-six of the Army Act (which relates to the
 power of a commanding officer) :—

- (i) in paragraph (b) of subsection (2) the words
 “ any other punishment ” shall be substituted
 for the word “ detention ” ;

- (ii) the following paragraph shall be inserted after
 paragraph (d) of subsection (2) :—

“ and

“ (e) in addition to or without any other
 punishment may award such other minor

punishment as he is for the time being authorised to award, so however that a minor punishment shall not be awarded for any offence for which detention exceeding seven days is awarded”;

- (iii) in subsection (7) for the words “for any offence which” there shall be substituted the words “where the charge has been dismissed or the offence”;
- (iv) in subsection (8) after the words “forfeiture of” there shall be inserted the word “ordinary,” and after the words “unless he awards” there shall be inserted “no other punishment than”;
- (v) the following subsection shall be substituted for subsection (9):—

“(9) The power of dealing summarily with a case may be delegated by a commanding officer to any officer under his command in accordance with and subject to the King’s Regulations:

“Provided that such officer shall not have power to inflict any punishment other than a minor punishment, or such fines for drunkenness as may be provided for by those Regulations.”

Amendment
of s. 47 of
Army Act.

7. The following amendments shall be made in section forty-seven of the Army Act (which relates to the power of dealing summarily with charges against officers and warrant officers):—

- (1) In subsection (1) for the words “also on active service the General or Air Officer Commanding-in-Chief in the Field,” there shall be substituted the words “also in the case of a force on service beyond the seas the general or air officer commanding the force”;
- (2) In subsection (5), for the words “for any offence which” there shall be substituted the words “where the charge has been dismissed or the offence”.

Amendment
of s. 57 of
Army Act.

8. In subsections (1) and (2) of section fifty-seven of the Army Act (which relates to commutation and remission of sentences), after the word “mentioned”

there shall be inserted the words “or, if such punishment is cashiering awarded for an offence under section sixteen of this Act, then for dismissal from His Majesty’s service or such less punishment as is in this Act mentioned.”

9. The proviso to subsection (1) of section seventy-one of the Army Act (which relates to military command) is hereby repealed. Amendment of s. 71 of Army Act.

10.—(1) The provisions of the Army Act relating to the impressment of carriages shall apply to all vehicles for carriage or haulage other than those specially constructed for use on rails, and there shall be paid in respect of carriages and animals furnished in pursuance of the said provisions the rates of remuneration commonly recognised or generally prevailing in the district at the time of impressment, and if any difference arises respecting the amount payable the amount shall be such as may be fixed by a certificate of a county court judge having jurisdiction in any place in which the carriage was furnished or through which it travels. Amendment of provisions as to impressment of carriages.

(2) With a view to carrying this section into effect and making various other alterations in the provisions of the Army Act relating to the impressment of carriages, the sections of the Army Act specified in the Second Schedule to this Act shall be amended in the manner shown in the second column of that schedule.

11. In paragraph (4) of section one hundred and thirty-seven of the Army Act (which relates to penal stoppages from the ordinary pay of officers) after the word “public” there shall be inserted the words “or regimental”. Amendment of s. 137 of Army Act.

12. In subsection (1) of section one hundred and thirty-eight of the Army Act (which relates to penal stoppages from the ordinary pay of soldiers) for the word “imprisonment” there shall be substituted the words “penal servitude or imprisonment.” Amendment of s. 138 of Army Act.

13. In section one hundred and sixty-three of the Army Act (which relates to evidence), after paragraph (l) the following paragraph shall be inserted:— Amendment of s. 163 of Army Act.

“(m) Where an officer or soldier has been apprehended and on arrest taken to a police station in any place in any part of His Majesty’s

dominions, or has on surrender been taken into custody at any such police station, then, for the purpose of any proceedings against that officer or soldier, a certificate purporting to be signed by the police officer in charge of that police station, stating the fact, date, and place of arrest or surrender, shall be evidence of the matters so stated."

Printing of
Army Act.

14. Copies of the Army Act printed in accordance with the provisions of section eight of the Army (Annual) Act, 1885, shall be printed with such alterations in cross headings as the Clerk of the Parliaments may certify to be necessary or expedient in consequence of amendments made in the Army Act.

Application
to air force.

15. References in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of this Part of this Act shall, in their application to the Air Force Act, have effect as if for the words "section eight of the Army (Annual) Act, 1885" there were substituted the words "sub-section (4) of section twelve of the Air Force (Constitution) Act, 1917," and as if for the word "regimental" there were substituted the word "service."

PART II.

AMENDMENTS OF ARMY ACT.

Amendment
of ss. 183 &
190 of
Army Act.

16.—(1) In section one hundred and eighty-three of the Army Act (which contains special provisions as to non-commissioned officers) for the words "an army schoolmaster" in both places where those words occur, there shall be substituted the words "an instructor, Army Educational Corps."

(2) In paragraph (5) of section one hundred and ninety of the Army Act (which relates to the interpretation of terms in that Act) the words "and includes an army "schoolmaster when not a warrant officer" shall be omitted.

Definition
of "corps."

17.—(1) For paragraph (15) of section one hundred and ninety of the Army Act (which defines the expression "corps") the following paragraph shall be substituted:—

"(15) The expression 'corps' means any such body of His Majesty's military forces as may

from time to time be declared by Royal Warrant to be a corps for the purposes of this Act; so, however, that the Royal Marine forces (in this Act referred to as the Royal Marines) shall be formed into a separate corps; and where a corps comprises units of the territorial army belonging to two or more counties, the corps shall, for the purposes of section nine of the Territorial and Reserve Forces Act, 1907, be deemed to be a corps for each such county."

(2) Accordingly, the enactments hereinafter mentioned shall have effect subject to the following amendments:—

- (a) In section eighty-three of the Army Act, for references to "corps of the regular forces" there shall be substituted references to "corps."
- (b) In subsection (2) of section fourteen of the Reserve Forces Act, 1882, for the reference to "corps of the regular forces" there shall be substituted a reference to "corps."
- (c) In subsection (2) of section seven of the Territorial and Reserve Forces Act, 1907, the words "and for the formation of such regiments, battalions, or other military bodies into corps, either alone or jointly with any other part of His Majesty's forces" shall be repealed.
- (d) In section thirty-three of the Territorial and Reserve Forces Act, 1907, the words "and for the formation of such regiments, battalions, or other military bodies into corps, either alone or jointly with any other part of His Majesty's forces," and the word "such" wherever it occurs, shall be repealed.

PART III.

AMENDMENTS OF AIR FORCE ACT.

18.—(1) The following proviso shall be substituted for proviso (6) to section forty-four of the Air Force Act (which provides for the scale of punishments by court-martial):—

Amendment
of ss. 44, 46
& 138 of
Air Force
Act.

"(6) In addition to or without any other punishment, it shall be lawful for a court-martial

to order, in respect of an offence committed by an airman on active service, that the offender forfeit all ordinary pay for a period commencing on the day of sentence and not exceeding three months, and in respect of an offence committed by an airman (other than a non-commissioned officer) when not on active service, that the offender forfeit all such pay for a period commencing as aforesaid and not exceeding twenty-eight days."

(2) The following paragraph shall be inserted after paragraph (d) of subsection (2) of section forty-six of the Air Force Act (which relates to the power of a commanding officer) :—

"(e) In the case of an offence by an airman (other than a non-commissioned officer) when not on active service, may in addition to, or without any other punishment, order that the offender forfeit all ordinary pay for a period commencing on the day of sentence and not exceeding fourteen days."

(3) In proviso (c) to section one hundred and thirty-eight of the Air Force Act (which relates to penal stoppages from ordinary pay of airmen), the words "on active service" shall be omitted.

Amendment
of s. 87
of Air Force
Act.

19. In section eighty-seven of the Air Force Act (which relates to prolongation of service in certain cases), after the words "air-force service" in subsection (1) thereof and after the words "service beyond the seas" in subsection (2) thereof there shall be inserted the words "or while officers and men of the air force reserve are called out to serve in defence of the British Islands against actual or apprehended attack."

Amendment
of provisions
as to
billeting.

20.—(1) The provisions of section one hundred and eight A of the Air Force Act (which relates to billeting in case of emergency) shall have effect in case of emergency notwithstanding that directions have not been given for embodying all or any part of the territorial army, and accordingly in subsection (1) of that section the words "where directions have been given for embodying all or any part of the territorial force" shall be omitted.

(2) In subsection (4) of section one hundred and eighty-one of the Air Force Act, which contains modifications of the Act with respect to the auxiliary forces, after

the word "behalf" there shall be inserted the words "or when called out to serve in defence of the British Islands against actual or apprehended attack."

21. In paragraph (10) of section one hundred and seventy-five of the Air Force Act (which defines the persons who are subject to that Act as officers) the words from "if an officer" to the end of the paragraph shall be omitted.

Amendment
of s. 175 of
Air Force
Act.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Tenpence per night for the first soldier and eightpence per night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army and Air Force Acts.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence per night for the first soldier and eightpence per night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	Two shillings and fourpence per day.
Stable room without forage - - -	Sixpence per day.
Lodging and attendance for officer - -	Three shillings per night.

Note.—An officer shall pay for his food.

SECOND SCHEDULE.

AMENDMENT OF PROVISIONS AS TO IMPRESSMENT OF CARRIAGES.

Section.	How to be amended.
S. 112	- At the end of the section the following subsection shall be inserted :— “ (7) Where a carriage has one or more alternative bodies the carriage may be demanded with any one or more bodies, and where a carriage is used for haulage the carriage may be demanded with or without the vehicles ordinarily hauled.”
S. 113	- The following subsections shall be substituted for subsections (1) to (4) :— “ (1) There shall be paid in respect of carriages and animals furnished in pursuance of the foregoing section of this Act the rates of payment commonly recognised or generally prevailing in the district at the time of impressment, and if any difference arises respecting the amount payable, the amount shall be such as may be fixed by a certificate of a county court judge having jurisdiction in any place in which the carriage or animal was furnished or through which it travelled. “ (2) For the purposes of fixing such amount the provisions set out in the Sixth Schedule to this Act shall have effect. “ (3) Where a sum has been paid or tendered by or on behalf of the Army Council under this section, that sum shall be deemed to be the amount due unless within three weeks of the date of the payment or tender an application is made to a county court judge for a certificate or formal notification is made to the Army Council that application for the certificate of a county court judge will be made in the event of a settlement not otherwise being arrived at. If such formal notification is made, the three weeks mentioned in this paragraph shall not be deemed to have commenced to run until the Army Council notifies the claimant that no further payment will be made beyond the amount tendered, except under a certificate of a county court judge.

Section.

How to be amended.

2ND SCH.

—cont.

S. 113—
cont.

“When formal notification is made to the Army Council, the sum already tendered may be accepted without prejudice to the right of applying to the county court judge.

“(4) The possessor of any carriage or animal at the time of impressment shall be deemed to be the owner for the purposes of the procedure of impressment where it is not otherwise declared at the time, and payment made to the possessor shall be deemed to be payment to the owner. In the event of the property being vested in another person or persons, the possessor shall notify all others interested in the property and adjust the amount received in due proportion. In the event of any difference arising, the amounts shall be apportioned on a certificate of a county court judge as aforesaid.”

S. 115 - In subsection (2) the words “(including motor-cars
“and other locomotives, whether for the purpose
“of carriage or haulage),” shall be omitted.

In subsection (3A) after “specified in such order”
there shall be inserted “notwithstanding that a
“receipt may be given by the officer mentioned
“in the warrant at the time of impressment”
and at the end of the subsection the following
shall be added:—

“The carriages or horses mentioned in the order shall not be deemed to have been furnished until proper delivery has been made to the place and at the time stated in the order.”

The following provision shall be substituted for subsection (4):—

“(4) The sum to be paid for any article shall be deemed to have been tendered when a formal receipt for the article setting forth the amount is handed to the owner or his representative but the property in a carriage or animal impressed shall be vested in the owner until such time as the carriage or animal has been duly furnished at the place and time stipulated.”

In subsection (10) “or carriages” shall be inserted after “horses” wherever that word occurs, and
“or carriage” shall be inserted after “horse.”

S. 190 - The following paragraph shall be inserted after paragraph (40):—

“(40A) The expression “carriage” means a vehicle for carriage or haulage other than one specially constructed for use on rails.”

2ND SCH.
—cont.

Section.

How to be amended.

Third
Schedule.

The Third Schedule shall be omitted.

Sixth
Schedule.

The following paragraph shall be substituted for paragraph 3:—

“3. In the case of impressment for hire, the amount fixed by the certificate shall be such amount as appears to the county court judge to be a fair rate of hire for the class of article in the district in which it is impressed or over which it is required to work. In the case of a requisition for purchase the amount fixed by the certificate shall be such amount as appears to the county court judge to be the fair market value of the article requisitioned on the day on which it was required to be furnished as between a willing buyer and a willing seller. Where the owner of a carriage or horse has been required to deliver it at a distance from his premises the amount shall include such sum as the judge may consider reasonable to cover the cost of such delivery.”

CHAPTER 26.

An Act to amend the British Empire Exhibition (Guarantee) Act, 1920, and the British Empire Exhibition (Amendment) Act, 1922, by increasing to one million one hundred thousand pounds the amount up to which a guarantee may be given thereunder, and by extending the operation of the said Acts to any loss resulting from the holding of the British Empire Exhibition in the year nineteen hundred and twenty-five.

[7th May 1925.]

10 & 11
Geo. 5. c. 74.
12 & 13
Geo. 5. c. 25.

WHEREAS by the British Empire Exhibition (Guarantee) Act, 1920, as amended by the British Empire Exhibition (Amendment) Act, 1922, the Board of Trade were authorised to guarantee up to an amount not exceeding one hundred thousand pounds any loss which might result from the holding of the British Empire Exhibition in the year nineteen